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JUNQIAO XIAO, State Bar No.: 341670
HYO JIN JULIA JUNG, State Bar No.: 316090
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CA Debt Collector License Number Pending
Attorneys for Plaintiff

Electronically FILED by
Superior Court of California,
County of Los Angeles
3/12/2024 7:11 AM
David W. Slayton,
Executive Officer/Clerk of Court,
By V. Banuelos, Deputy Clerk

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF LOS ANGELES
CHATSWORTH COURTHOUSE NORTH VALLEY DISTRICT**

MIDLAND CREDIT MANAGEMENT, INC.

Plaintiff,

vs.

WARDUI KIRAKOSSYAN;

Defendant.

Case No. 24CHLC00776

**DECLARATION RE:
CODE OF CIVIL PROCEDURE § 1033;
INTEREST; AND
EVIDENCE CODE § 1550**

I, the undersigned, declare and state as follows:

1. I am the attorney of record for plaintiff MIDLAND CREDIT MANAGEMENT, INC. ("Plaintiff") in the above entitled action. To the extent that Plaintiff acts in its capacity as successor in interest to the original creditor or its assigns, references herein to Plaintiff may include Plaintiff's predecessor in interest. If called to testify, I could and would competently testify as to all the facts stated in this declaration, except as to those matters testified to upon information and belief, and as to those matters, I believe them to be true.

2. I am an attorney and an employee of Midland Credit Management, Inc. ("MCM"), the servicer of Plaintiff's account. I have access to and have reviewed the electronic records pertaining to the account and am authorized to make this affidavit on Plaintiff's behalf. The electronic records reviewed consist of data acquired from the seller when Plaintiff purchased the account, together with records generated in connection with servicing the account since the day the account was purchased by Plaintiff. In addition, I reviewed the documents that are attached to this affidavit.

1 3. Plaintiff is precluded from filing this case in Small Claims Court per Code of Civil
2 Procedure § 116.420(a).

3 4. The complaint seeks to recover amounts owed by Defendant VARDUI KIRAKOSSYAN
4 ("Defendant"). The underlying account that is the basis of the instant lawsuit is a credit account that
5 Defendant held with creditor CITIBANK, N.A., account number: XXXXXXXXXXXX-1945 (the
6 "Account").

7 5. Prior to filing this complaint, all right, title and interest to the Account was sold and
8 assigned to Plaintiff. Plaintiff owns the Account and stands in the place of the original creditor and is
9 entitled to collect on the Account as if it were the original creditor. Additionally, as owner of the
10 Account, Plaintiff can testify to ownership of the Account and the fact that the debt remains unpaid by
11 Defendant.

12 6. Upon my review of the Plaintiff's records as they pertain to Defendant's account, there
13 were previous transactions between the original creditor and Defendant. Defendant agreed to repay the
14 amount due to the original creditor, and there was a valid assignment of the account from the original
15 creditor to Plaintiff. By using the Account, Defendant expressly agreed or impliedly promised to repay
16 Plaintiff.

17 7. Prior to the commencement of this action, as part of our usual course of business, and
18 pursuant to Code of Civil Procedure § 1033(b)(2), Defendant was notified in writing of the intended legal
19 action and that any judgment entered against the Defendant would include attorney's fees and collections
20 costs. A true and correct copy of the letter sent to Defendant is attached hereto as "Exhibit A".

21 8. When Defendant failed to pay the balance due, Plaintiff filed and served the Complaint in
22 this action. Defendant was served with the complaint on January 23, 2024. A proof of service was filed
23 with the court.

24 9. Upon my review of the Plaintiff's records as they pertain to this case, I further certify
25 that no papers or any responsive pleadings have been served on and received by Plaintiff by the
26 party(s) in default, therefore the allegations of the complaint are deemed admitted by law.

27 10. Plaintiff seeks entry of Defendant's default and judgment as set forth in the Request for
28 Entry of Default Judgment, Judicial Council for 982 (a)(6) filed with this Declaration.

11. Filed as part of this default judgment packet is an affidavit pursuant to Code of Civil Procedure section 585. The affidavit and its attached exhibits establish the account and the obligation.

COSTS AND FEES

12. Pursuant to Code of Civil Procedure § 1033(b)(2), Plaintiff is entitled to recover the actual costs of a filing fee and the actual costs of service of process.

13. It is the normal business and procedure of Plaintiff to microfilm, image or store as electronic media all documents provided by Plaintiff's predecessor-in-interest. The records are microfilmed, imaged or stored as electronic media to facilitate storage and are maintained as part of Plaintiff's regular business practice and procedure. Therefore, Plaintiff requests that all copies of documents produced as part of this default judgment packet, including any affidavits and any documents attached thereto, be accepted in lieu of the original pursuant to Evidence Code § 1550.

I declare under penalty of perjury under the laws of California that the foregoing is true and correct.

Date February 25, 2024

MIDLAND CREDIT MANAGEMENT, INC.

By: 

- ☐ ROBERT K. HANNA
- ☐ JUNQIAO XIAO
- ☒ HYO JIN JULIA JUNG
- ☐ MICHAEL D. KAHN
- ☐ LAMONT FREEMAN

EXHIBIT A

MIDLAND CREDIT MANAGEMENT
LEGAL COLLECTIONS DEPARTMENT

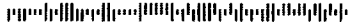
MidlandCredit.com
(877)-898-5001

Our Client: Midland Credit Management, Inc.
Original Creditor: CITIBANK, N.A.
Original Account No.: XXXXXXXXXXXX1945
Current Balance: \$3,521.32
Internal Legal Account No.: 23-217613

Michael Kahn, State Bar No. 236898
Hyo Jin Julia Jung, State Bar No. 316090

Vardui Kirakossyan

P1 T11 1223 Carlton Dr
001 Glendale, CA 91205-1409



12/08/2023

REF: CITIBANK, N.A.

Original Account Number: XXXXXXXXXXXX1945

Dear Vardui Kirakossyan,

As attorneys with Midland Credit Management, Inc. legal department, we are contacting you regarding the collection of the above balance. Your CITIBANK, N.A. Account, owned by Midland Credit Management, Inc., has now been transferred to our legal collections department due to non-payment. We are currently reviewing documentation (including the attached documents) in preparation for filing a lawsuit against you.

Demand is hereby made upon you for the above payment IN FULL—this is the amount due on your original obligation when transferred to our department. Please send payment **Made Payable to Midland Credit Management, Inc.** by 12/18/2023. You may also make a payment online at MidlandCredit.com.

If we do not receive payment IN FULL by 12/18/2023, we intend to file a lawsuit against you, seeking entry of judgment for your account's outstanding balance as well as any incurred and recoverable court costs. We intend to continue our collection efforts through various post-judgment remedies available under your state's laws if a judgment is obtained against you. If you are unable to pay in full by 12/18/2023 please contact our office at (877)-898-5001 to discuss affordable repayment options.

Your prompt attention is necessary to avoid a lawsuit. Please call (877)-898-5001 no later than 12/18/2023. You may also make a payment online at MidlandCredit.com.

Sincerely,
Attorneys for Midland Credit Management, Inc.

P.S. Attached are copies of some of the documents we received from the original creditor regarding this account.

002190

Visit Us Online
MidlandCredit.com
Call (877)-898-5001
Hours of Operation:
M – Fri: 8:00am – 7:30pm EST
Sat: Closed
Sun: Closed

P.O. Box 2121 Warren, MI 48090

PLEASE SEE REVERSE SIDE FOR IMPORTANT DISCLOSURE INFORMATION

Please tear off and return lower portion with payment in the envelope provided

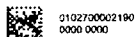
PAYMENT CERTIFICATE

Internal Legal Account Number: 23-217613
Original Account Number: XXXXXXXXXXXX1945
Current Balance: \$3,521.32
Amount Enclosed: \$ _____

Vardui Kirakossyan
1223 Carlton Dr
Glendale, CA 91205-1409

Payment Options:
1) Pay by phone: (877)-898-5001
2) Mail in this certificate with your payment and make check payable to: Midland Credit Management, Inc.

P.O. Box 2121 Warren, MI 48090



0102700002190
0000 0000

PRE_002

IMPORTANT DISCLOSURE INFORMATION:

Please understand this is a communication from a debt collector. This is an attempt to collect a debt.
Any information obtained will be used for that purpose.

Calls to and/or from this company may be monitored or recorded.

MAIL PAYMENTS TO: P.O. Box 2121 Warren, MI 48090

MAIL CORRESPONDENCE TO: P.O. Box 2121, Warren, MI 48090

We are required under state law to notify consumers of the following additional rights. This list does not contain a complete list of the rights consumers have under applicable law:

IF YOU LIVE IN CALIFORNIA, THIS APPLIES TO YOU:

California Code of Civil Procedure §1033(b)(2) requires us to notify you that in the event of legal proceedings, such legal proceedings could result in a judgment against you that could include court costs and necessary disbursements under applicable law, if Midland Credit Management, Inc. is found to be legally entitled to the same.

California license number pending.

PRE_002

Citi ThankYou® Preferred Card

VARDUI KIRAKOSSYAN

Member Since 2012 Account number ending in: 1945

Billing Period: 08/06/22-09/07/22

www.citicards.com

Customer Service 1-800-THANKYOU(1-800-842-6596)

TTY: 711

30X 6500 SIOUX FALLS, SD 57117

SEPTEMBER STATEMENT**Minimum payment due:** \$3,521.32**New balance as of 09/07/22:** \$3,521.32**Payment due date:** 09/07/22

See the last page of this statement for important information about how to avoid paying interest on purchases.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$40 and your APRs may be increased up to the Penalty APR of 25.99%.

Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on this statement in about...	And you will end up paying an estimated total of...
Only the minimum payment	1 month(s)	\$3,521

For information about credit counseling services, call 1-877-337-8195.

Account Summary

Previous balance	\$3,476.29
Payments	-\$0.00
Credits	-\$0.00
Purchases	+\$0.00
Cash advances	+\$0.00
Fees	+\$0.00
Interest	+\$45.03
New balance	\$3,521.32

Credit Limit

Credit limit	\$3,100
Includes \$800 cash advance limit	

For Payments, send check to: CITI CARDS, PO BOX 78045, Phoenix, AZ, 85062-8045

Pay your bill from virtually anywhere with the Citi Mobile® App and Citi® Online



To download:
Text "App15" to MyCiti (692484)
or go to your device's app store.
Or visit www.citicards.com

Minimum payment due	\$3,521.32
New balance	\$3,521.32
Payment due date	09/07/22

Amount enclosed:

Account number ending in 1945
Please make check payable to CITI CARDS.

000000 MC 32 A 0

VARDUI KIRAKOSSYAN
1223 CARLTON DR
GLENDALE CA 91205-1409

CITI CARDS
PO BOX 78045
Phoenix, AZ 85062-8045

15009 0352132 0352132 0014000 0 1945 0508



0202700902190
0000 0000

www.citicards.com

Customer Service 1-800-THANKYOU(1-800-842-6596)
TTY: 711

Page 2 of 2

VARDUI KIRAKOSSYAN

Account Summary

Trans. date	Post date	Description	Amount
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Fees charged

Total fees charged in this billing period	\$0.00
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Interest charged

Date	Description	Amount
09/07	INTEREST CHARGED TO STANDARD PURCH	\$1.04
09/07	INTEREST CHARGED TO PUR PR-06/26/21	\$6.96
09/07	INTEREST CHARGED TO PUR PR-11/26/21	\$25.78
09/07	INTEREST CHARGED TO PUR PR-06/26/22	\$3.59
09/07	INTEREST CHARGED TO PUR PR-12/28/21	\$5.76
Total interest charged in this billing period	\$45.03	

2022 totals year-to-date

Total fees charged in 2022	\$280.00
Total interest charged in 2022	\$313.90

Interest charge calculation

Days in billing cycle: 33

Your Annual Percentage Rate (APR) is the annual interest rate on your account.

Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	14.24% (V)	\$50.96 (D)	\$1.04
Pur Pr: 062821	14.24% (V)	\$537.87 (D)	\$8.85
Pur Pr: 112621	14.24% (V)	\$2,002.62 (D)	\$25.78
Pur Pr: 062822	14.24% (V)	\$278.84 (D)	\$3.59
Pur Pr: 122821	14.24% (V)	\$447.79 (D)	\$5.76
ADVANCES			
Standard Adv	27.49% (V)	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

Account messages

Please note that if we received your pay by phone or online payment between 5 p.m. ET and midnight ET on the last day of your billing period, your payment was credited as of the date of receipt, but will not be reflected until your next statement.

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EXHIBIT B

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State, Bar number, and address): Kristy Gabrielova (274827), H Julia Jung (316090), Michael Kahn (236898), Robert K Hanna (341970), Junqiao Xiao (341670) Midland Funding LLC 350 Camino de la Reina Suite 100 San Diego, CA 92108 TELEPHONE NO.: 866-300-8750 FAX NO. (Optional): E-MAIL ADDRESS (Optional): ATTORNEY FOR (Name): Midland Credit Management Inc.		FOR COURT USE ONLY Electronically FILED by Superior Court of California, County of Los Angeles 1/24/2024 1:12 PM David W. Slayton, Executive Officer/Clerk of Court, By M. Bell, Deputy Clerk
SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES STREET ADDRESS: 9425 Penfield Avenue, Room 1200 MAILING ADDRESS: 9425 Penfield Avenue, Room 1200 CITY AND ZIP CODE: Chatsworth 91311 BRANCH NAME: North Valley District, Chatsworth Courthouse		
PLAINTIFF/PETITIONER: Midland Credit Management Inc.		CASE NUMBER: 24CHLC00776
DEFENDANT/RESPONDENT: VARDUI KIRAKOSSYAN		
PROOF OF SERVICE OF SUMMONS		Ref. No. or File No.: 23-217613

1. At the time of service I was at least 18 years of age and not a party to this action.
2. I served copies of (specify documents):
Summons; Complaint; Civil Case Cover Sheet; Civil Case Cover Sheet Addendum and Statement of Location; Notice of Case Assignment; Order to Show Cause Hearing/Trial Date
3. a. Party served (specify name of party as shown on documents served):
VARDUI KIRAKOSSYAN
- b. ☐ Person (other than the party in item 3a) served on behalf of an entity or as an authorized agent (and not a person under item 5b whom substituted service was made) (specify name and relationship to the party named in item 3a):
4. Address where the party was served:
1223 CARLTON DR, GLENDALE, CA 91205-1409
5. I served the party (check proper box)
- a. ☒ **by personal service.** I personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on (date): **01/23/2024** at (time): **6:33 PM**
VARDUI KIRAKOSSYAN, I delivered the documents to VARDUI KIRAKOSSYAN with identity confirmed by subject stating their name. The individual accepted service with direct delivery. The individual appeared to be a brown-haired Middle Eastern female contact 25-35 years of age, 5'-5'4" tall and weighing 80-120 lbs.
- b. ☐ **by substituted service.** On (date): at (time): I left the documents listed in item 2 with or in the presence of (name and title or relationship to person indicated in item 3):
- (1) ☐ **(business)** a person at least 18 years of age apparently in charge at the office or usual place of business of the person to be served. I informed him or her of the general nature of the papers.
- (2) ☐ **(home)** a competent member of the household (at least 18 years of age) at the dwelling house or usual place of abode of the party. I informed him or her of the general nature of the papers.
- (3) ☐ **(physical address unknown)** a person at least 18 years of age apparently in charge at the usual mailing address of the person to be served, other than a United States Postal Service post office box. I informed him or her of the general nature of the papers.
- (4) ☐ I thereafter caused to be mailed (by first class, postage prepaid) copies of the documents to the person to be served at the place where the copies were left (Code Civ. Proc. § 415.20). Documents were mailed on (date): from (city): or ☐ a declaration of mailing is attached.

BY FAX



PLAINTIFF/PETITIONER: Midland Credit Management Inc.	CASE NUMBER:
DEFENDANT/RESPONDENT: VARDUI KIRAKOSSYAN	24CHLC00776

(5) ☐ I attach a **declaration of diligence** stating actions taken first to attempt personal service.

- c. ☐ **by mail and acknowledgement of receipt of service.** I mailed the documents listed in item 2 to the party, to the address shown in item 4, by first-class mail, postage prepaid,
- (1) on (date): (2) from (city):
- (3) ☐ with two copies of the *Notice and Acknowledgement of Receipt* and a postage-paid return envelope addressed to me. (*Attach completed Notice and Acknowledgement of Receipt.*) (Code Civ. Proc., § 415.30)
- (4) ☐ to an address outside California with return receipt requested. (Code Civ. Proc., § 415.40)
- d. ☐ **by other means** (*specify means of service and authorizing code section*):

☐ Additional page describing service is attached.

6. The "Notice to the Person Served" (on the summons) was completed as follows:

- a. ☒ as an individual defendant.
- b. ☐ as the person sued under the fictitious name of (*specify*):
- c. ☐ as occupant.
- d. ☐ On behalf of (*specify*)

under the following Code of Civil Procedure section:

- | | |
|---|---|
| ☐ 416.10 (corporation) | ☐ 415.95 (business organization, form unknown) |
| ☐ 416.20 (defunct corporation) | ☐ 416.60 (minor) |
| ☐ 416.30 (joint stock company/association) | ☐ 416.70 (ward or conservatee) |
| ☐ 416.40 (association or partnership) | ☐ 416.90 (authorized person) |
| ☐ 416.50 (public entity) | ☐ 415.46 (occupant) |
| | ☐ other: |

7. **Person who served papers**

- a. Name: **Robert Alba**
- b. Address: **26123 bouquet canyon rd., #147, santa clarita, CA 91350**
- c. Telephone number: **818-805-6726**
- d. The fee for service was: **\$ 67.60**
- e. I am:

- (1) ☐ not a registered California process server.
- (2) ☐ exempt from registration under Business and Professions Code section 22350(b).

- (3) ☒ registered California process server:
- (i) ☐ owner ☐ employee ☒ independent contractor. For: **ABC Legal Services, LLC**
- (ii) ☒ Registration No.: **2017009246** Registration #: **6779**
- (iii) ☒ County: **County clerk Los Angeles county** County: **Los Angeles**

BY FAX



8. ☒ I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.
or
9. ☐ I am a California sheriff or marshal and I certify that the foregoing is true and correct.

Date: 01/23/2024

Robert Alba

(NAME OF PERSON WHO SERVED PAPERS/SHERIFF OR MARSHAL)

RH Alba

(SIGNATURE)

